

RESOLUTION OF RIGHTS PROCEDURE

Once the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD) have been carried out, the following FACTS have been established:

FIRST: Mr. A.A.A. (hereinafter, the claimant) exercised the right of access to his health file before the GENERAL DIRECTORATE OF POLICE (hereinafter, the respondent), which denied this right indicating that "(...) he must request through an application or minute to this Regional Health Unit, to be summoned to these premises, in order to be provided with his occupational clinical history, in compliance with what is established by Law 41/2002, of November 14, which regulates the autonomy of the patient and rights and obligations regarding information and clinical documentation.

Once this request has been processed and received, the summoning of the applicant will proceed through the regulatory channels for such purposes, and he must appear at this Regional Health Unit located at (...) on the indicated date and time in order to comply with the aforementioned."

The claimant states that he requested that the requested documentation be sent to him and expresses his disagreement with being required to collect it in person.

SECOND: In accordance with Article 65.4 of the LOPDGDD, this complaint was forwarded to the respondent, so that it could analyze it and inform this Agency within one month of the actions taken to comply with the requirements established in the data protection regulations.

The Data Protection Officer of the respondent considers that "(...) the report from the Health Unit of the Superior Police Headquarters of Madrid (...), responds precisely and appropriately to the current regulations on data protection regarding the issues raised by this AEPD. It is noteworthy that given the uniqueness of the data linked to the access request, related to health, the processing of this request has taken into account the principles of confidentiality, as well as active and diligent custody of clinical histories."

The main argument presented in the aforementioned report is that at no time did the Health Unit of the Superior Police Headquarters of Madrid consider denying the right of access to the data requested by the interested party, but rather that, given his full right to access, all security, custody, and confidentiality measures required for the delivery, copying, and processing of such documents must be guaranteed by the aforementioned Regional Health Unit. Among the guarantees, the Health Unit informs about the process of how the patient's summoning should be carried out through the channels established by regulation, the subsequent...

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verification of your identity, as well as the delivery of the history through an act ex professo (with Instructor and Secretary), aspects that reinforce the diligence in the processing by the Health Unit."

THIRD: The result of the transfer procedure indicated in the previous Fact did not allow for the understanding that the claims of the complaining party were satisfied. Consequently, on April 9, 2023, for the purposes provided in Article 64.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection agreed to admit the complaint filed for processing.

The aforementioned agreement granted the responding party a hearing period, so that within ten working days it could present the arguments it deemed appropriate, reiterating, in summary, the arguments previously presented.

"(...) That this regional Health Unit, as well as the medical and technical personnel that compose it, has NEVER refused to provide a copy of the medical file to Mr. A.A.A., who has full right to access it, but must ensure, on the part of this Regional Health Unit, all security, custody, and confidentiality measures that this type of document requires for its delivery, copying, and processing. Likewise, this Regional Health Unit does not have access to the communication and processing channels referred to

by the aforementioned official in his writings, being the instance or minute through the secretariat of his destination police station or through the secretariat of this Regional Health Unit, the regulatory channels enabled to process the requests made by members of the National Police, in addition to being the most efficient in terms of timelines, given the own communication network between the different bodies that make up the General Directorate of the Police and all its central and peripheral organs.

(...) That this Regional Health Unit has received several emails from someone claiming to be Mr. A.A.A., sent to the official address of this Unit (...) It is reported that the email address used by the sender does not correspond to an official server of the National Police, this Medical Service not having the necessary guarantees of authenticity of the same, nor knowing the identity of the person/people sending it and not being able to establish official communication through that channel from this Medical Service.”

“(…) That from this Regional Health Unit, following precise instructions from the Health Area of the Personnel Division of this General Directorate, as well as what is established in Law 41/2002, of November 14, which regulates the autonomy of the patient and rights and obligations in terms of information and clinical documentation, the delivery of the copy of the medical file held by this Unit is carried out in these premises in the presence of the requesting official once the belonging and identity of the requester is verified in the aforementioned act, receiving a copy of the documents selected by the holder through an Act of delivery of the copies of the delivered documents, duly certified and in the presence of a Medical Officer acting as Instructor of the procedure and a police officer acting as secretary, both assigned to this Regional Health Unit and designated for this procedure.”

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FOURTH: After examining the document submitted by the responding party, it is forwarded to the claiming party, so that, within a period of fifteen working days, they may formulate the allegations they deem appropriate, stating, in summary, that they reaffirm their claim.

“That their intention has been to exercise the right that assists them to communicate electronically with the Administration, a matter recognized in Law 39/2015 on the Common Administrative Procedure, being in fact the preferred way to do so.

(...) That regarding the alleged lack of security for sending the required documentation due to not having certainty that the applicant is who they claim to be, it should be noted that the undersigned made clear their intention for the requested documents to be sent to the email address mentioned in the application or, failing that, to the Single Authorized Electronic Address (DEHú). This application was signed with an Electronic Certificate, which left no doubt that it was the undersigned who requested the data of which they are the owner; furthermore, through the DEHú, notification is ensured, with access to it being accredited by date and time, and consequently, having certainty of the correct sending to its recipient (...)

The claiming party states that they submitted a new request dated December 22, 2022 “(...) where they requested only ‘Access and a copy of the PERSONAL HEALTH FILE that is held in that Unit’ without asking for it to be sent electronically, and yet, access to it was not provided. This application dated December 22 was submitted to the Secretariat of the Citizen Attention Groups (GGAC) (...)”

FIFTH: After granting a hearing to the responding party, and as far as this procedure is concerned, they reiterate what has already been previously alleged.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that “The procedures processed by the Spanish Agency for Data Protection will be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures.”

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II

Preliminary Issues

In accordance with the provisions of Article 55 of the GDPR, the Spanish Agency for Data Protection is competent to perform the functions assigned to it in Article 57, among them, to enforce the Regulation and promote awareness among data controllers and processors regarding the obligations that pertain to them, as well as to address the complaints submitted by an interested party and investigate the reasons for them.

Correspondingly, Article 31 of the GDPR establishes the obligation of data controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In cases where they have appointed a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with that authority.

In accordance with this regulation, prior to the admission for processing of the complaint that gives rise to this procedure, it was forwarded to the responding party for analysis, requiring them to respond to this Agency within one month and to demonstrate that they had provided the claimant with the appropriate response, in the event of exercising the rights regulated in Articles 15 to 22 of the GDPR. The result of this forwarding did not allow for an understanding that the claims of the claiming party were satisfied. Consequently, on April 9, 2023, for the purposes provided in Article 64.2 of the LOPDGDD, the Director of the Spanish Agency for Data Protection agreed to admit the complaint for processing. This admission agreement determines the opening of the present procedure for lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of the GDPR, regulated in Article 64.1 of the LOPDGDD, according to which:

“1. When the procedure refers exclusively to the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679, it will be initiated by an admission agreement, which will be adopted in accordance with the provisions of the following article.

In this case, the deadline for resolving the procedure will be six months from the date on which the claimant was notified of the admission agreement. After this period, the interested party may consider their complaint accepted.”

It is not deemed appropriate to clarify administrative responsibilities within the framework of a sanctioning procedure, whose exceptional nature implies that, whenever possible, preference should be given to alternative mechanisms that are supported by current regulations.

It is the exclusive competence of this Agency to assess whether there are administrative responsibilities that should be clarified in a sanctioning procedure and, consequently, the decision on its initiation, with no obligation to initiate a procedure upon any request made by a third party. Such a decision must be based on the existence of elements that justify the initiation of the activity.

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sanctioning, circumstances that do not apply in the present case, considering that with the present procedure the guarantees and rights of the claimant are duly restored.

III

Rights of individuals regarding personal data protection

The rights of individuals regarding personal data protection are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. The rights of access, rectification, erasure, objection, the right to restriction of processing, and the right to data portability are contemplated.

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, consideration is given to what is expressed in Recitals 59 and following of the GDPR.

In accordance with the provisions of these regulations, the data controller must establish formulas and mechanisms to facilitate the exercise of rights by the data subject, which will be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless it can demonstrate that it is unable to identify the data subject, and must express its reasons in case it does not intend to comply with such request. The burden of proof regarding compliance with the obligation to respond to the request for the exercise of rights made by the affected party lies with the controller.

The communication addressed to the data subject regarding their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and simple language.

IV

Right of access

According to the provisions of Article 15 of the GDPR and Article 13 of the LOPDGDD, "the data subject has the right to obtain from the data controller confirmation as to whether or not personal data concerning them is being processed and, if so, the right of access to the personal data."

Regarding the right of access to personal data, in accordance with the provisions of Article 13 of the LOPDGDD, when the exercise of the right refers to a large amount of data, the controller may request the affected party to specify the "data or processing activities to which the request refers." The right will be considered granted if the controller provides remote access to the data, with the request being deemed fulfilled (although the data subject may request information regarding the aspects provided in Article 15 of the GDPR).

The exercise of this right may be considered repetitive if it is exercised more than once within a six-month period, unless there is a legitimate reason for doing so.

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On the other hand, the request will be considered excessive when the affected party chooses a means other than the one offered that entails a disproportionate cost, which must be borne by the affected party.

Like the other rights of the interested party, the right of access is a personal right. It allows the citizen to obtain information about the processing of their data, the possibility of obtaining a copy of the personal data concerning them that is being processed, as well as information, in particular, about the purposes of the processing, the categories of personal data concerned, the recipients or categories of recipients to whom the data may be communicated, the expected retention period or criteria for retention, the possibility of exercising other rights, the right to lodge a complaint with the supervisory authority, the information available about the source of the data (if it has not been obtained directly from the data subject), the existence of automated decisions, including profiling, and information about transfers of personal data to a third country or to an international organization. The possibility of obtaining a copy of the personal data being processed shall not negatively affect the rights and freedoms of others; that is, the right of access shall be granted in such a way that it does not affect third-party data.

The right of access concerning the medical history is specifically regulated in Article 18 of Law 41/2002, of November 14, which is the basic regulatory law of the Patient's Autonomy and Rights and Obligations in the Field of Information and Clinical Documentation (hereinafter LAP), the literal text of which states:

"1. The patient has the right of access, with the reservations indicated in section 3 of this article, to the

documentation of the medical history and to obtain a copy of the data contained therein. The health centers shall regulate the procedure that guarantees the observance of these rights.

2. The patient's right of access to the medical history may also be exercised by duly accredited representation.

3. The patient's right of access to the documentation of the medical history may not be exercised to the detriment of the right of third parties to the confidentiality of the data contained therein collected in the therapeutic interest of the patient, nor to the detriment of the right of the professionals involved in its preparation, who may oppose the right of access the confidentiality of their subjective notes.

4. Health centers and individual practitioners shall only facilitate access to the medical history of deceased patients to persons linked to them, for family reasons or otherwise, unless the deceased expressly prohibited it and this is accredited. In any case, access by a third party to the medical history motivated by a risk to their health shall be limited to the relevant data. Information affecting the privacy of the deceased or the subjective notes of the professionals, or that harms third parties, shall not be provided."

In this regard, it is important to highlight Article 15 of the LPA, which outlines the minimum content of the medical history:

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"1. The medical history shall include the information deemed essential for the truthful and updated knowledge of the patient's health status. Every patient or user has the right to have a record, in writing or in the most appropriate technical support, of the information obtained in all their care processes, carried out by the health service both in the primary care and specialized care settings.

2. The main purpose of the medical history shall be to facilitate healthcare, documenting all those data that, under medical criteria, allow for the truthful and updated knowledge of the health status.

The minimum content of the medical history shall be as follows:

a) The documentation related to the clinical-statistical sheet.

b) The admission authorization.

c) The emergency report.

d) The anamnesis and physical examination.

e) The evolution.

f) The medical orders.

g) The consultation sheet.

h) The reports of complementary examinations.

i) The informed consent.

j) The anesthesia report.

k) The operating room report or childbirth record.

l) The pathology report.

m) The evolution and planning of nursing care.

n) The therapeutic application of nursing.

ñ) The vital signs chart.

o) The clinical discharge report.

Paragraphs b), c), i), j), k), l), ñ), and o) shall only be required in the completion of the medical history when it concerns hospitalization processes or as otherwise provided.

3. The completion of the medical history, in aspects related to direct patient care, shall be the responsibility of the professionals involved in it.

4. The medical history shall be maintained with criteria of unity and integration, in each healthcare institution at a minimum, to facilitate the best and most timely knowledge by the professionals of the data of a particular patient in each care process."

Regarding the preservation of the medical history, Article 17 of the LPA, in its points 1 and 5, provides

that:

"1. Health centers have the obligation to preserve clinical documentation under conditions that guarantee its proper maintenance and security, although not necessarily in the original support, for the proper assistance to the patient for the time appropriate to each case and, at a minimum, five years from the date of discharge from each care process (...)"

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5. Healthcare professionals who carry out their activities individually are responsible for the management and custody of the healthcare documentation they generate.

V

Conclusion

In the case analyzed here, it has been established that the claimant exercised their right to access their personal health file and that the respondent has denied this request, indicating that the claimant must request to be summoned to their premises to personally receive said health file once the ownership and identity of the requester are verified in the mentioned act, receiving a copy of the documents selected by the holder through a Record of Delivery of the copies of the documents provided, duly certified and in the presence of a Medical Practitioner acting as the Instructor of the procedure and a police officer acting as secretary, both assigned to this Regional Health Unit and designated for this procedure.

It should be noted that, in these cases, where the request is not submitted through the provided channel or at the corresponding office, the receiving body must forward the request received to the assigned Data Protection Delegate or the department responsible for managing this type of requests.

Furthermore, although it is appropriate for such a request to be addressed to the address declared by the responsible party for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679 or to the central office, it is considered that the receipt of the request by any department or branch of the responsible party is a valid destination for it, in accordance with Article 12 of LOPDGDD, which states:

"The data controller shall be obliged to inform the affected party about the means available to exercise the rights that correspond to them. The means must be easily accessible for the affected party. The exercise of the right cannot be denied solely on the grounds that the affected party has opted for another means."

According to the European Data Protection Board, there are no specific requirements regarding the format of a request. The data controller must provide appropriate and user-friendly communication channels that can be easily utilized by the interested party. However, the interested party is not obliged to use these specific channels and may instead send the request to an official contact point of the data controller. The controller is not obliged to act on requests sent to completely random or apparently incorrect addresses.

Thus, the guidelines of the aforementioned Committee indicate that:

"32. In the case of requests made by electronic means, the information shall be provided by electronic means whenever possible and unless the interested party requests otherwise (see Article 12, paragraph 3, of the GDPR). Article 15, paragraph 3, third sentence, complements this requirement in the context of access requests by stating that the data controller is also..."

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obliged to provide the response in a commonly used electronic format, unless the data subject

requests otherwise. Article 15, paragraph 3, presupposes that, for controllers who may receive electronic requests, it will be possible to respond to the request in a commonly used electronic format (for more details, see section 5.2.5). This provision refers to all the information that must be provided in accordance with Article 15, paragraphs 1 and 2. Therefore, if the data subject submits the access request electronically, all information must be provided in a commonly used electronic format. Formatting issues are developed in section 5. The data controller must, as always, apply appropriate security measures, particularly when it concerns a special category of personal data (see below, in point 2.3.4).

(...)

2.3.4. Compliance with data security requirements

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Since the communication and provision of personal data to the data subject is a processing operation, the data controller is always obliged to implement appropriate technical and organizational measures to ensure a level of security appropriate to the risk of processing (see Article 5, paragraph 1, letter f), Article 24, and Article 32 of the GDPR). This applies regardless of the modality in which access is provided. In the case of non-electronic transmission of data to the data subject, depending on the risks presented by the processing, the data controller may consider using certified mail or, alternatively, offer, but not require, the data subject to collect the file against signature directly from one of the data controller's establishments. If, in accordance with Article 12, paragraphs 1 and 3, the information is provided by electronic means, the data controller will choose the electronic means that comply with the data security requirements. Also, in the case of providing a copy of the data in a commonly used electronic format (see Article 15, paragraph 3), the data controller will take into account the data security requirements when choosing the means of transmission of the electronic file to the data subject. This may include the application of encryption, password protection, etc. To facilitate access to encrypted data, the data controller must also ensure that appropriate information is provided so that the data subject can access the decrypted information. In cases where data security requirements necessitate end-to-end encryption of emails, but the data controller could only send a regular email, the data controller will have to use other means, such as sending a USB memory stick by registered postal mail to the data subject.

(...)

3.3. Assessment of proportionality regarding the authentication of the requesting person

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As previously indicated, if the data controller has

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reasonable grounds to doubt the identity of the applicant, may request additional information to confirm the identity of the interested party. However, the data controller must ensure at the same time that no more personal data is collected than necessary to allow the authentication of the applicant. Therefore, the data controller will carry out a proportionality assessment, which must take into account the type of personal data being processed (for example, special categories of data or not), the nature of the request, the context in which the request is made, as well as any harm that may result from incorrect disclosure. When assessing proportionality, it should be remembered that excessive data collection must be avoided while ensuring an adequate level of security in the processing.

In the present case, from the examination of the documentation provided by the parties, it is observed that the identity of the applicant was duly accredited, since he had submitted his request through electronic registration using his digital certificate.

The Guidelines of the European Committee continue to indicate

“154. In this context, it is important to remember that there is a distinction between the right of access under Article 15 of the GDPR and the right to receive a copy of the administrative documents regulated

by national legislation, the latter being a right to receive a copy of the actual document. This does not mean that the right of access under Article 15 of the GDPR excludes the possibility of receiving a copy of the document/medium in which the personal data appears.

(...)

157. Article 12, paragraph 3, of the GDPR requires that the data controller provide information to the interested party about the measures taken in relation to a request under Article 15 without undue delay and, in any case, within one month of receiving the request. This period may be extended by a maximum of two months, taking into account the complexity and number of requests, provided that the interested party has been informed of the reasons for such delay within one month of receiving the request. This obligation to inform the interested party about the extension and its reasons should not be confused with the information that must be provided without undue delay and, at the latest, within one month when the data controller does not take action on the request, as detailed in Article 12, paragraph 4, of the GDPR.

158. The data controller will respond and, as a general rule, will provide the information provided for in Article 15 without undue delay, which means that the information must be provided as soon as possible. This means that, if it is possible to provide the requested information in a shorter period than one month, the controller must do so. The EDPB also considers that the timeline for responding to the request in some situations should be adapted to the storage period in order to facilitate access.

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159. The period begins when the data controller has received a request under Article 15, that is, when the request reaches the data controller through one of its official channels. It is not necessary for the data controller to be aware of the request. However, when the data controller needs to communicate with the interested party due to uncertainty about the identity of the person making the request, there may be a time suspension until the data controller has obtained the necessary information from the interested party, provided that the data controller has requested additional information without undue delay. The same applies when a data controller has requested an interested party to specify the processing operations referred to in the request, when the conditions established in Recital 63 are met.”

Consequently, in the present case, it is appropriate to uphold the complaint filed.

In view of the cited provisions and other generally applicable regulations, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO UPHOLD the complaint filed by Mr. A.A.A. considering that the provisions of Article 15 of the GDPR have been infringed and to urge the GENERAL DIRECTORATE OF THE POLICE with NIF S2816015H, to send to the complainant, within ten working days following the notification of this resolution, a certification addressing the requested right or a reasoned denial indicating the reasons why the request cannot be granted, in accordance with the provisions of this resolution. The actions taken as a result of this Resolution must be communicated to this Agency within the same period.

Non-compliance with this resolution could result in the commission of an infringement of Article 83.6 of the GDPR, classified as very serious for the purposes of prescription in Article 72.1.m) of the LOPDGDD, which will be sanctioned in accordance with Article 58.2 of the GDPR.

SECOND: NOTIFY this resolution to Mr. A.A.A. and to the GENERAL DIRECTORATE OF THE POLICE.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

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Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions established in Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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